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Attorneys for Defendants
SF MULTIFAMILY III PROPERTY OWNER LLC and
BRICK AND TIMBER, INC.

ELECTRONICALLY
FILED
*Superior Court of California,
County of San Francisco*
06/17/2025
Clerk of the Court
BY: MADONNA CARANTO
Deputy Clerk

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SAN FRANCISCO

TANNER PIKOP,

Plaintiff,

vs.

SF MULTIFAMILY POOLS 2-3 (B) OWNER
LLC, SF MULTIFAMILY III PROPERTY
OWNER LLC; BRICK AND TIMBER, INC.,
aka BRICK + TIMBER, INC., a California
Corporation, MISSION ROCK RESIDENTIAL
CALIFORNIA, INC. and DOES 1 through 50,
inclusive;

Defendants.

Case No.: CGC-24-620191

**DEFENDANTS SF MULTIFAMILY III
PROPERTY OWNER LLC AND
BRICK AND TIMBER, INC'S
ANSWER TO PLAINTIFF'S
COMPLAINT**

Action filed: December 2, 2024
Trial Date: None Set

Defendants SF MULTIFAMILY III PROPERTY OWNER LLC and BRICK AND
TIMBER, INC. (hereinafter "Defendants"), by and through their attorneys, WILSON ELSE
MOSKOWITZ EDELMAN & DICKER, LLP, hereby answer the Complaint of Plaintiff
TANNER PIKOP (hereinafter "Plaintiff"), on file herein, and allege as follows:

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1 **GENERAL DENIAL**

2 Pursuant to the Code of Civil Procedure §431.30(d), the answering Defendants deny
3 generally and specifically, each and every, all and singular, the allegations of Plaintiff's
4 Complaint on file herein, and further denies that Plaintiff has been injured or damaged in any of
5 the sums mentioned in the Complaint, or in any amount, or at all, by reasons of any act or
6 omission of the answering Defendants.

7 **FIRST DEFENSE**

8 **(FAILURE TO STATE A CLAIM)**

9 1. As a separate defense, the answering Defendants are informed and believe and on
10 that basis allege that Plaintiff's Complaint, and each and every purported count thereof, fails to
11 set forth facts sufficient to constitute any viable cause of action for which relief can be granted
12 against the answering Defendants.

13 **SECOND DEFENSE**

14 **(STATUTE OF LIMITATIONS)**

15 2. As a separate defense, the answering Defendants are informed and believe and on
16 that basis allege that the causes of action set forth in the Plaintiff's Complaint are barred by the
17 running of the applicable statute of limitations as embodied in California Code of Civil Procedure,
18 §§ 335.1, 337, and 339.

19 **THIRD DEFENSE**

20 **(CONTRIBUTION)**

21 3. As a separate defense, the answering Defendants are informed and believe and on
22 that basis allege that the damages suffered by Plaintiff, if any, were the direct and proximate result
23 of the negligence of parties, persons, corporations and/or entities other than the answering
24 Defendants, and that the liability of the answering Defendants, if any, are limited in direct
25 proportion to the percentage of fault actually attributable to the answering Defendants.

26 **FOURTH DEFENSE**

27 **(CONTRIBUTORY NEGLIGENCE)**

28 4. As a separate defense, the answering Defendants are informed and believe, and

1 thereon allege, that at all times mentioned herein, Plaintiff was negligent, careless, reckless and
2 unlawfully conducted themselves so as to directly and proximately contribute to the happening of
3 the incident and the occurrence of the alleged damages, all of which said negligence bars either
4 completely or partially the recovery sought by Plaintiff.

5 **FIFTH DEFENSE**

6 **(COMPARATIVE FAULT OF THIRD PARTIES)**

7 5. As a separate defense, the answering Defendants are informed and believe, and
8 upon such information and belief allege, that the accident and property damage or injuries, if any,
9 allegedly suffered by Plaintiff was proximately caused and contributed to by the negligence of
10 third parties (other than Plaintiff or the answering Defendants), and that said third parties failed
11 to exercise reasonable care at and prior to the time of said damages, and by reason thereof, any
12 recovery by Plaintiff against the answering Defendants must be reduced by an amount equal to
13 the proportionate fault of said third parties.

14 **SIXTH DEFENSE**

15 **(THIRD PARTY COMPARATIVE INDEMNITY)**

16 6. As a separate defense, the answering Defendants are informed and believe and on
17 that basis allege that, without admitting that Plaintiff has suffered, or will suffer, any damages or
18 injuries as a result of conduct alleged in Plaintiff's Complaint, any damages or injuries which
19 were or will be sustained by Plaintiff was caused, in whole or in part, by the negligence and/or
20 tortious acts, omissions and/or conduct of other parties, persons or entities other than the
21 answering Defendants. Any damages recoverable by Plaintiff must be diminished in proportion
22 to the amount of fault attributable to said other persons, parties, or entities.

23 **SEVENTH DEFENSE**

24 **(INTERVENING AND SUPERSEDING CAUSES)**

25 7. As a separate defense, the answering Defendants are informed and believe and
26 thereon allege that the injuries, property damage, and damages of which Plaintiff complains were
27 proximately caused by or contributed to by the acts of other Defendants, persons and/or other
28 entities, and that said acts were an intervening and superseding cause of the injuries and damages,

1 if any, of which Plaintiff complains, thus barring Plaintiff from any recovery against the
2 answering Defendants.

3 **EIGHTH DEFENSE**

4 **(ESTOPPEL)**

5 8. As a separate defense, the answering Defendants are informed and believe, and
6 thereon allege, that Plaintiff engaged in conduct and activities with respect to the subject of this
7 litigation, and by reason of said activities and conduct, are estopped from asserting any claims for
8 damages or seeking any other relief against the Defendants.

9 **NINTH DEFENSE**

10 **(WAIVER)**

11 9. As a separate defense, the answering Defendants are informed and believe, and
12 thereon allege, that Plaintiff has engaged in conduct and activities sufficient to constitute a waiver
13 of any alleged breach of contract or duty, negligence, act, omission, or any other conduct, if any,
14 as set forth in Plaintiff's Complaint.

15 **TENTH DEFENSE**

16 **(PRIOR MATERIAL BREACH)**

17 10. As a separate defense, the answering Defendants are informed and believe that
18 they are excused from any alleged breach of agreement, if any, by the prior material breach of
19 any alleged agreement by Plaintiff.

20 **ELEVENTH DEFENSE**

21 **(SEVERAL LIABILITY FOR NON-ECONOMIC DAMAGES)**

22 11. As a separate defense, the Defendants allege that the provisions of the "Fair
23 Responsibility Act of 1986" (commonly known as Proposition 51, Civil Code §§ 1431, 1431.1,
24 1431.2, 1431.3, 1431.4 and 1431.5) are applicable to this action, to the extent that any injuries
25 sustained by Plaintiff, if any, were the direct and proximate result of the negligence of parties,
26 persons, corporations, and/or entities other than these answering Defendants, and that the liability
27 of the answering Defendants with respect to Plaintiff's alleged non-economic damages, if any, is

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1 limited in direct proportion to the percentage of fault actually attributable to the answering
2 Defendants.

3 **TWELFTH DEFENSE**

4 **(LACHES)**

5 12. As a separate defense, Plaintiff waited an unreasonable period of time before
6 asserting its claims, if any, against the answering Defendants, and is barred from asserting such
7 claims under the doctrine of laches.

8 **THIRTEENTH DEFENSE**

9 **(UNCLEAN HANDS)**

10 13. As a separate defense, Plaintiff is barred by the equitable doctrine of unclean hands
11 from obtaining the relief requested.

12 **FOURTEENTH DEFENSE**

13 **(COMPLETE PERFORMANCE)**

14 14. As a separate defense, the answering Defendants are informed and believe and on
15 that basis allege that they have appropriately, completely, and fully performed and discharged
16 any and all obligations and legal duties arising out of the matters alleged in Plaintiff's Complaint.

17 **FIFTEENTH DEFENSE**

18 **(LACK OF EQUITY)**

19 15. As a separate defense, the answering Defendants are informed and believe and
20 thereon allege that as between Defendants and Plaintiff, the equities do not preponderate in favor
21 of Plaintiff so as to allow recovery based on equitable indemnity.

22 **SIXTEENTH DEFENSE**

23 **(STANDARD OF CARE)**

24 16. As a separate defense, the answering Defendants allege that Plaintiff is barred and
25 precluded from any recovery in this action because the answering Defendants at all times
26 complied with any applicable standard of care required of the answering Defendants, at the time
27 and location where the services were rendered.

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1 **SEVENTEENTH DEFENSE**

2 **(LACK OF NOTICE)**

3 17. As a separate defense, the answering Defendants did not have actual or
4 constructive notice of the defective condition, if any, in sufficient time before the incident within
5 which measures could have been taken to protect against the defective condition.

6 **EIGHTEENTH DEFENSE**

7 **(FAIR RESPONSIBILITY ACT)**

8 18. As a separate defense, the answering Defendants are informed and believe and
9 thereon allege that Plaintiff's Complaint and each cause of action directed against them therein,
10 was brought without reasonable care and without a good faith belief that there was a justifiable
11 controversy under the facts and under applicable law such as to warrant the filing of said
12 Plaintiff's Complaint against Defendants. Plaintiff is therefore responsible for all necessary and
13 reasonable defense costs, including attorney fees, incurred by the answering Defendants as more
14 particularly set forth in Code of Civil Procedure, § 128.5.

15 **NINETEENTH DEFENSE**

16 **(INDEMNIFICATION BY APPORTIONMENT)**

17 19. As a separate defense, the answering Defendants are informed and believe, and
18 thereon allege, that they are entitled to a right of indemnification by apportionment against all
19 other parties and persons whose negligence contributed proximately to the happening of the
20 claimed incident or the alleged injuries.

21 **TWENTIETH DEFENSE**

22 **(ASSUMPTION OF THE RISK)**

23 20. As a separate defense, the answering Defendants are informed and believe, and
24 thereon allege, that at the time and place in question, Plaintiff had full knowledge of the conditions
25 existing, and fully appreciated the danger thereof. Plaintiff voluntarily assumed the risk of its
26 own actions and omissions, and of the incident alleged in Plaintiff's Complaint, and its
27 assumption of the risk was the proximate cause of the alleged injury and damages, if any. Said
28 assumption of risk bars or diminishes any recovery herein.

1 **TWENTY-FIRST DEFENSE**

2 **(CALIFORNIA CIVIL CODE SECTION 1698)**

3 21. As a separate defense, the answering Defendants are informed and believe, and
4 thereon allege, that Plaintiff's Complaint and each and every cause of action against Defendants
5 therein are barred by California Civil Code section 1698.

6 **TWENTY-SECOND DEFENSE**

7 **(LACK OF OWNERSHIP OR CONTROL)**

8 22. As a separate defense, the answering Defendants are informed and believe and
9 thereon allege that they did not own, control, nor were they responsible for the location, design,
10 nor any of the activities that occurred at the location where the subject accident is alleged to have
11 occurred. Any recovery is therefore barred.

12 **TWENTY-THIRD DEFENSE**

13 **(FAILURE TO MITIGATE)**

14 23. As a separate defense, the answering Defendants are informed and believe, and on
15 such information and belief allege that any injury, damage or loss suffered by Plaintiff was
16 proximately caused by Plaintiff's failure to use reasonable means to prevent new and/or the
17 aggravation of underlying conditions and to use reasonable means to mitigate damages to
18 Plaintiff.

19 **TWENTY-FOURTH DEFENSE**

20 **(PRIVILEGED CONDUCT)**

21 24. As a separate defense, the answering Defendants are informed and believe and
22 thereon allege that any action or inaction by Defendants with respect to the allegations in
23 Plaintiff's Complaint were justified and/or privileged by law, including but not limited to the
24 litigation privilege embodied in the California Civil Code for pursuit of legal rights to recover
25 possession, and the San Francisco Rent Ordinance.

26 **TWENTY-FIFTH DEFENSE**

27 **(PUNITIVE DAMAGES)**

28 25. As a separate defense, the answering Defendants are informed and believe and

1 thereon allege that an award of punitive damages violates the due process clause of the Fifth and
2 Fourteenth Amendments to the United States Constitution and the corresponding provisions of
3 the Constitution of the State of California.

4 **TWENTY-SIXTH DEFENSE**

5 **(NON-COMPLIANCE WITH CIVIL CODE SECTION 1941.2)**

6 26. As a separate defense, the answering Defendants are informed and believe and
7 thereon allege that Plaintiff was in substantial violation of the affirmative obligations provided in
8 California Code section 1941.2. which violation contributed substantially to the injuries and
9 damages alleged by Plaintiff in this case.

10 **TWENTY-SEVENTH DEFENSE**

11 **(ACCORD AND SATISFACTION)**

12 27. As a separate defense, the answering Defendants are informed and believe and
13 thereon allege that Plaintiff's Complaint is barred by the Doctrine of Accord and Satisfaction.

14 **TWENTY-EIGHTH DEFENSE**

15 **(FAILURE TO PERFORM BY PLAINTIFF)**

16 28. As a separate defense, the answering Defendants are informed and believe and
17 thereon allege Defendants have fully performed all obligations under the contract and any further
18 performance by Defendants is excused by the failure of Plaintiff to perform its obligations under
19 the contract.

20 **TWENTY-NINTH DEFENSE**

21 **(PLAINTIFF'S MISREPRESENTATIONS)**

22 29. As a separate defense, the answering Defendants are informed and believe and
23 thereon allege Defendants have fully performed all obligations under the contract and any further
24 performance by Defendants are excused by the material misrepresentations of Plaintiff.

25 **THIRTIETH DEFENSE**

26 **(COMPARATIVE FAULT)**

27 30. As a separate defense, the answering Defendants are informed and believe and
28 thereon allege that any injuries sustained by Plaintiff was either wholly or in part negligently

1 caused by persons, firms, corporations, or entities other than this answering Defendant, and said
2 negligence is either imputed to Plaintiff, by reason of the relationship of said parties to Plaintiff,
3 and/or said negligence comparatively reduces the percentage of negligence, if any, by these
4 answering Defendants.

5 **THIRTY-FIRST DEFENSE**

6 **(ADDITIONAL DEFENSES)**

7 31. As a separate defense, the answering Defendants presently have insufficient
8 knowledge or information on which to form a belief as to whether they may have additional, as
9 yet unstated affirmative defenses available. Defendants reserve herein the right to assert
10 additional defenses in the event that the discovery indicates that would be appropriate.

11 WHEREFORE, Defendants SF MULTIFAMILY III PROPERTY OWNER LLC and
12 BRICK AND TIMBER, INC. pray for judgment, as follows:

13 1. Plaintiff takes nothing by way of Plaintiff's Complaint and that the same should
14 be dismissed with prejudice;

15 2. The answering Defendants be awarded costs of suit incurred herein;

16 3. If liability is assessed upon the answering Defendants, the liability attributed to the
17 Defendants be limited in direct proportion to the percentage of fault actually attributable to
18 Defendants;

19 4. For reasonable attorney's fees incurred herein;

20 5. For such other and further relief as the Court deems just and proper.

21
22 DATED: June 17, 2025

**WILSON, ELSER, MOSKOWITZ,
EDELMAN & DICKER, LLP**

23
24
25 By: 

John H. Podesta, Esq.

26 Darrell V. Nguyen, Esq.

27 Attorneys for Defendants

SF MULTIFAMILY III PROPERTY

28 OWNER LLC and BRICK AND TIMBER,
INC.

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I, the undersigned, am employed in the county of San Francisco, State of California. I am over the age of 18 and not a party to the within action; my business address is 655 Montgomery Street, Suite 900, San Francisco, CA 94111.

**DEFENDANTS SF MULTIFAMILY III PROPERTY OWNER LLC AND
BRICK AND TIMBER, INC'S ANSWER TO PLAINTIFF'S COMPLAINT**

☐: **PERSONAL SERVICE** - I served the documents by placing them in an envelope or package addressed to the persons at the addresses listed below, and providing them to a professional messenger service for service. (A confirmation by the messenger will be provided to our office after the documents have been delivered.)

☐: **OVERNIGHT MAIL** - As follows: I am “readily familiar” with the firm’s practice of processing correspondence for mailing overnight via Federal Express. Under that practice it would be deposited in a Federal Express drop box, indicating overnight delivery, with delivery fees provided for, on that same day, at San Francisco, California.

☒: **BY E-MAIL** - Based on a court order or an agreement of the parties to accept service by e-mail or electronic transmission, I caused the documents to be sent to the persons at the e-mail addresses listed below. I did not receive, within a reasonable time after the transmission, any electronic message or other indication that the transmission was unsuccessful.


Jada Liu

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SERVICE LIST

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